

Bentley International Trading Incorporation (Ross Mines, Ltd) By and thru its
Presented and CEO, Kenneth A, Ross, Jr. of the City of Monrovia, Liberia,
APPELLANT v **The Government of the Republic of Liberia** by and thru the
Honourable Minister of Land, Mines, and Energy or his Authorized Representative of
the City of Monrovia, Liberia, APPELLEE

PETITION FOR THE WRIT OF MANDAMUS

LRSC 12

Heard: November 27, 2013 Decided: January 16, 2014

MR. CHIEF JUSTICE KORKPOR DELIVERED THE OPINION OF THE
COURT.

The appellee, Government of Liberia, and the appellant, Bentley International Trading Corporation, entered into a Mining Concession Agreement (the "Bentley Agreement") on April 13, 1978, which was approved by the President of the Republic of Liberia on May 10, 1978, and subsequently ratified by the Legislature of the Republic of Liberia. The Bentley Agreement was signed into law by the President of Liberia on May 28, 1978.

Section 2.1 of the Bentley Agreement, Term of Agreement, provides inter alia: "The term of this Agreement shall commence on the Effective Date, and shall expire at the earlier of (a) such time as the Operator shall no longer engage in Commercial Production of Gold and/or Associated Minerals derived from Gold Ore Deposit within Production Lots, or (b) 20 years after the Effective Date, plus any period of renewal to which the Government may agree."

Section 34 of the Bentley Agreement defines its effective date, as follows:

This Agreement shall become effective upon approval by the President of the Republic of Liberia. Thereafter, this agreement shall be submitted for the approval of and ratification by the Legislature of the Republic of Liberia.

Pursuant to Sections 2.1 and 34, quoted above, the Bentley Agreement should have expired on May 29, 1998, unless otherwise extended. Notwithstanding, on December 4, 1998, the appellee, the Government of the Republic of Liberia, proceeded to the Civil Law Court, Sixth Judicial Circuit, Montserrado County and filed a petition for declaratory judgement against the appellant. In the petition for declaratory judgment the appellee alleged essentially that: a) on May 10, 1978, the Government of the Republic of Liberia and the appellant executed a Concession Agreement which was approved by the Legislature and published into law; b) that the Concession Agreement provides a duration period of twenty (20) years plus any period of renewal to which

the Government may agree; c) that the appellant and the Government never agreed on renewing the Concession Agreement; d) that the Concession Agreement expired by its own terms and conditions in May 1998; e) that there is a need to remove cloud and quiet title over the property, subject of the Concession Agreement; f) that if the cloud is not removed, there would be difficulty in negotiating with any other party relative to the use of the property, subject of the Concession Agreement.

On January 22, 1999, the presiding Judge, His Honor, the late Joseph Andrews, entered judgement on the petition for declaratory judgment in favour of the appellee in an ex parte proceeding. The Judge ruled as follows:

"WHEREFORE, and in view of the foregoing, it is the judgement of this court that [the]petition for declaratory judgement is hereby granted and the premises, subject of the agreement, is restored to the full ownership of the Republic of Liberia as if there was never ever any agreement. By this Decree the Government of Liberia is free to interact and or contract with any individual and groups of individuals, business entity as it sole[ly] desires. AND IT IS SO ORDERED.

On April 22, 1999, following the ruling of Judge Andrews quoted above, the appellee entered into another mining concession agreement with Freedom Gold Limited covering portion of the are as previously covered by the Bentley Agreement. That Agreement was amended on May 18, 1999.

The appellant claimed to have gone by the mining concession area during the month of August 1999, and noticed that Freedom Gold, the new concessionaire of the appellee, was working in an area which had previously been assigned to the appellant under the Bentley Agreement. The appellant then proceeded to the Sixth Judicial Circuit, Civil Law Court, Montserrado County, to enquire as to whether the Bentley Agreement had been cancelled by the Civil Law Court. On discovering that a default judgment had been entered against it in favour of the appellee, restoring to the appellee full ownership of the mining concession previously granted to the appellant by the appellee, the appellant concluded that the Civil Law Court was in error, since it was not served with a writ of summons, and therefore not brought under the jurisdiction of the Civil Law Court.

On September 13, 1999, the appellant filed an application for a writ of error in the Chambers of then Chief Justice, Her Honour Gloria Musu Scott. However the records do not show that any action was taken on the writ of error.

On October 7, 1999, the appellant returned to the trial court, that is, the Civil Law Court and filed a motion for relief from judgment, alleging fraud in the service of process, which is said to have denied the appellant of the right to due process.

On October 19, 1999, the appellee filed its resistance to the motion for relief from judgment, contending that the declaratory judgment had already been enforced, as a concession agreement had already been entered into with a third-party. The appellee also denied the appellant's allegation of fraud.

Disposing of the motion for relief from judgment, His Honor Judge Yussif D. Kaba, then presiding over the Civil Law Court ruled on November 9, 1999 as follows:

"Whereof and in view of the foregoing, and the law controlling it is the Ruling of this Court that the Movant's Motion for Relief of Judgment ought to be and same is hereby granted and the resistance denied and dismissed and by that Movant is hereby relie[ved] from the Judgment in the Declaratory Proceedings and the parties are hereby restored to their original position they held prior to the filing of the Petition for Declaratory Judgment. Th[is] Judgment is without prejudice to the Republic of Liberia, to proceed to the proper forum for the relief it sought before this Court. The Clerk of this Court is hereby ordered to issue a writ of possession and place same in the hands of the Sheriff to re-possess the Movant of the property which they were dispossessed of as a result of this Ruling and it is so ordered.

On November 16, 1999, the appellee filed a motion to rescind the ruling entered by Judge Kaba, alleging essentially that the appellant had filed an application for a writ of error before the Supreme Court which was denied, thus terminating the case.

In its resistance to the appellee's motion to rescind, the appellant conceded that its application for the issuance of the alternative writ of error was not granted, but otherwise contended that the refusal to issue the alternative writ of error was not conclusive, as petitions for remedial writs are subject to the sound discretion of the Justice in chamber. So, according to the appellant, it cannot be said that the Supreme Court sitting en banc denied the application for a writ of error. Count 4 of the appellant's resistance to the motion to rescind states:

"That as to Count 4 of the Movant's Motion, Respondent (Appellant) says that the entire averments contained in Count 4 are false and misleading in that the denial of the application for the Writ of Error by the Assigned Justice was not based on the merit of the application, but rather it was based on the issuance of service which is in the sound discretion of the Assigned Justice, in the instant case, the Chief Justice."

His Honor Judge Yussif D. Kaba, after hearing arguments from the counsels representing both parties, granted the motion to rescind, thereby rescinding his own ruling in the motion for relief from judgment. The Judge ruled as follows:

Wherefore and in view of the foregoing, and in keeping with Section 10.7 of our Civil Procedure Law, it is the ruling of this Court that this Court's ruling of November 9,

1999, on the motion for relief from judgment same being void due to the information that the Honourable Supreme Court has earlier made the determination of the matter which this Court was called to review by the Motion to Relief from judgment, the Court hereby rescinds the said ruling of November 9, 1999 and restore to the full force of legal interest of the ruling of our colleague Judge Joseph W. Andrews which this Court was called upon to relief the Respondent from since this Court lacks jurisdiction to review the act of the Honourable Supreme Court or Justice presiding in Chamber. AND IT IS SO ORDERED

The Court-appointed attorney to take the ruling for the appellant, Counsellor Osborne Diggs, excepted to the ruling of Judge Kaba and announced an appeal to the Supreme Court. But Judge Kaba denied the appeal in the following words:

The court says that while normally an appeal is a matter of right, in this instance and based on our ruling we note that the respondent has previously filed an appeal to the Supreme Court by way of error proceedings which were denied by the Honorable Supreme Court. In view of the said denial of [the] respondent's appeal by the Supreme Court, we have no alternative but to deny the respondent's appeal.

On July 9, 2004, the appellant filed a petition for a writ of mandamus before the late Chambers Justice John L. Greaves, praying for the issuance of an alternative writ of mandamus to compel the trial judge to grant the appellant's appeal.

On August 20, 2004, a citation was sent out by the Clerk of the Supreme Court for a conference with Justice John L. Greaves. After conducting conference with the parties, Justice Greaves issued the alternative writ of prohibition prayed for, heard the petition, and granted the peremptory writ of mandamus. The appellee appealed from the ruling of Justice Greaves to the Supreme Court en banc.

In disposing of the appeal, the Supreme Court in an opinion delivered by our late colleague, Justice Ishmael P. Campbell on January 6, 2006, held as follows:

It is the ruling of this Honourable Court that the ruling of the Chamber Justice granting the Petition for Mandamus and ordering the Judge below to grant the Petitioner/Appellee's appeal nunc pro tunc is hereby affirmed. The Clerk of this Court is hereby ordered to send a mandate to the Sixth Judicial Circuit, Montserrado County, to resume jurisdiction and grant the appeal of the Petitioner/Appellee nunc pro tunc. AND IT IS SO ORDERED."

The mandate of the Supreme Court to grant the appellant's appeal nunc pro tunc was read on April 29, 2006, before His Honor Korboi K. Nuta, Assigned Circuit Judge over the 6th Judicial Circuit, Civil Law Court. Following the reading of the mandate Judge Nuta ruled as follows:

"The appeal of the petitioner, Bentley International Trading Corp (Ross Mines, Ltd) is hereby granted nunc pro tunc. As the appeal will serve as a STAY of the ruling which grew out of the Motion to rescind, the Clerk of this Court is hereby ordered to issue a Writ of Possession and place same in the hands of the Sheriff to have the Petitioner, Bentley International Trading Corporation (Ross Mines Ltd) repossess of all the Property, including "all of the areas covered by the Mining Concession Agreement entered into by and between the Government, Approved May 23, 1978 (also known as the Bonkonjideh Concession). This said Agreement shall remain in full force and effect pending the determination of the appeal by the Honorable Supreme Court of the Republic. AND IT IS SO ORDERED.

Although the appellant was granted its appeal, the trial judge ordered the issuance of a writ of possession to place the appellant in possession pending the determination of the appeal in this case. The writ of possession was served on the Minister of Lands, Mines & Energy on May 2, 2006, while a six-count bill of exception was filed on May 3, 2006, by the appellant. After the service of the writ of possession on the Minister of Lands, Mines, & Energy, the appellant on September 7, 2006, requested the Minister of Justice to facilitate its repossession of the mining concession area.

On October 13, 2006, the then Minister of Justice, Frances Morris-Johnson, requested the Ministry of Lands, Mines & Energy to cooperate to repossess the appellant.

On July 29, 2008, the appellant requested the Minister of Lands, Mines, & Energy to confirm the coordinates of its concession area, as well as to extend the duration of the expired concession for fifteen years. The appellant contended that the duration of the Bentley Agreement was disrupted for seven years as a result of the civil war and for an additional eight years because the Government of Liberia had seized its mining concession area and given it to Freedom Gold. The Minister of Lands, Mines & Energy, Dr. Eugene Shannoh, in response to the appellant's request to extend the duration of its concession, wrote the appellant, informing it that he had extended its expired concession by fifteen years.

On October 12, 2012, the appellant filed a Bill of Information with the Supreme Court, alleging that the mandate of the Supreme Court had been violated by the appellee, because, among other things, the appellee had refused to award to the appellant a total of 417.9 square miles or 1,082 square kilometers of the mining concession area, which was previously granted to the appellant in 1978 under the Bentley Agreement.

With the filing of the bill of information, Hummingbird Resources (Liberia) Inc., intervenor, filed a motion to intervene in this matter alleging that it has vested interest in the area being claimed by the appellant. The intervenor claimed, among other things,

that it has nine Class A exploratory licenses issued by the appellee, the Government of the Republic of Liberia within the mining concession area, which was part of the exploration area granted to the appellant in 1978 under the Bentley agreement for a period of three years. The intervenor also alleged that it had invested millions of United States dollars in exploration activities as the result of which it is currently engaged in the process of negotiating its Mineral Development Agreement (MDA) with the Government of Liberia; and that in accordance with the Mining Law, the appellee could not grant the appellant any portion of the mining concession area to which the intervenor already had title and/or mining claim.

This Court granted the motion to intervene holding inter alia as follows:

After a careful examination of the records and the laws controlling, it is hereby adjudged: That the Intervenor has made a prima facie case for intervening in the bill of information proceeding and that the intervention will not unduly delay or prejudice the adjudication of the rights of the parties. The intervention is more likely than not to vindicate the rights of all of the parties. The motion to intervene is therefore granted.

The bill of information and the appeal were therefore consolidated in order to have the rights of all parties fully vindicated.

The overriding issue presented by the Bill of Information is, whether the trial judge, the Government of the Republic of Liberia, appellee, or any other person violated the mandate of this Court, which grew out of the mandamus proceeding? We agree that a bill of information is the proper means through which an aggrieved party would complain to this Court, if the mandate of this Court is violated.

The Revised Rules of the Supreme Court, Part 12 provides:

- (a) A Bill of Information will lie to prevent a Judge or any Judicial Officer who attempts to execute the mandate of the Supreme Court in an improper manner from doing so.
- (b) A Bill of Information will also lie to prevent any one whosoever from interfering with the Judgment and/or Mandate of the Supreme Court.
- (c) The Bill of Information shall be venue before the Court en banc and shall be filed with the Clerk of Court. The approval of the Chief Justice or an Associate Justice shall not be required prior to the filing thereof.
- (d) Once a Bill of Information shall have been filed, it shall be governed by the procedures outlined in these Rules and the Civil Procedure Law for handling of Petitions.

(e) Any counselor who files a bill of Information before this Court assigning reasons therefor other than the reasons expressly prescribed by these Rules shall be penalized by the imposition of a fine, suspension or disbarment.

Consistent with the Rules of this Court on Bill of Information quoted above, we have consistently held that a bill of information will lie where the mandate of this Court is being interfered with or improperly executed. *Nyumah & Freeman v. Kontoe & Paye*, 40 LLR 14(2000); *Jawhary v. Jones*, 38 LLR (1998).

In order to pass on the issue whether the mandate of this Court in the mandamus proceeding decided on January 6, 2006, has been interfered with or improperly executed, we take recourse to the said mandate. Our late colleague, Justice Campbell, speaking on behalf of this Court ruled as follows:

"It is the ruling of this Honourable Court that the Ruling of the Chambers Justice granting the Petition of Mandamus and ordering the Judge below to grant the Petitioner/Appellee appeal nunc pro tunc is hereby affirmed. The Clerk of this Court is hereby ordered to send a mandate to the Sixth Judicial Circuit, Montserrado County, to resume jurisdiction and grant the appeal of the Petitioner/Appellee nunc pro tunc. AND IT IS SO ORDERED."

Clearly, the mandate of this Court was to grant the appellant the right to appeal without any procedural roadblocks, hence the order nunc pro tunc. Accordingly, the appellant was allowed to appeal, and the appeal was heard by this Court, which is now the subject of this opinion. So, as we see it, the mandate of this Court was not violated; to the contrary this Court's mandate was fully complied with.

But the appellant contends in its bill of information, that the mandate of the Supreme Court has been violated by the appellee, because, among other things, the appellee had refused to award to the appellant the full total of 417.9 square miles or 1,082 square kilometers of the mining concession area which was previously granted to the appellant in 1978 under the Bentley Agreement. We disagree because the mandate of the Supreme Court directing that the appellant should be granted the right to appeal nunc pro tunc did not include an order to repossess the appellant. Moreover, the main suit, the petition for declaratory judgment, out of which the motion for relief from judgment, as well as the motion to rescind grew, does not grant possessory right. It is unheard of in this jurisdiction that possession would be granted flowing out of a suit in equity.

Further, let us look at the following sequence of events that transpired: a) Judge Andrews granted the appellee, Government of Liberia, repossession of the concession area in contention and the Government took physical possession thereof and entered into concession agreement with a third party, Freedom Gold covering portion of the

concession area.; b) Judge Kaba subsequently granted a motion for relief from judgment in favor of the appellant, but that relief from judgment was short lived; c) Judge Kaba rescinded his own ruling before the appellant could take full possession of the concession areas in question.

The net effect of Judge Kaba rescinding his own ruling is that the ruling of Judge Andrews was revived and restored in respect of the appellant. In other words, once Judge Kaba rescinded his ruling, the appellant was no longer relieved from the judgment in the petition for declaratory judgment which divested appellant of the concession area in contention. The question is how can a party defendant (appellant) who was not in possession of the premises and who had announced an appeal from a decision be placed in possession thereof as was ordered by Judge Koboi Nuta? If the appellant is placed in possession of the property, subject of the appellant's appeal what, then, is the useful purpose of the appeal? We therefore hold that the ruling of Judge Nuta ordering that the appeal announced by the appellant from the ruling in the motion to rescind served as a stay and that the appellant should be placed in possession of the concession area until this case is finally decided by this Court was very irregular and had no legal basis.

We now proceed to determine the appeal. The parties raised an aggregate of ten issues in their briefs, prominent among which involved the application for a writ of error, the motion for relief from judgment, the motion to rescind, and the status of the Bentley Agreement at the time of the declaratory judgment action. This Court has decided over and over again that it may dispose of a matter without the need to traverse all of the issues raised in the pleadings; the Court may pass upon only those issues that are necessary for arriving at a judicially sound opinion.

On November 16, 1999, the appellee filed a motion to rescind the November 9, 1999 ruling of the trial judge, Judge Kaba, which ruling had granted the appellant's motion for relief from judgment. The issue is, whether a motion to rescind will lie after the losing party had excepted to the adverse ruling and announced an appeal to this Court?

The appellant contends that the motion to rescind should not have been granted by the trial court because the appellee excepted to the ruling on the motion for relief from judgment, and announced an appeal. It is the appellant's contention that the only thing the appellee should have done at that point was to have pursued the appeal.

We do not agree. This Court has held that in order to benefit from the relief, which a motion to rescind affords, the party filing the motion must first of all announce an exception to the ruling; failure to announce an exception is sufficient ground to deny the motion. *Trokon International et al v. Reeves et al.*, 39 LLR 626 (1999).

Certainly, our law permits, and the practice is hoary with age, that a judge may modify or vacate or rescind any ruling or judgment he renders within the term in which he is sitting. In the case: *John Emmanuel Francis v. The Mesurado Fishing Company*, 20 LLR542, text at 550, this Court said: "The authority to vacate or set aside judgments is incident to all courts of record, or of general jurisdiction, including courts of equity, and appellate courts, and probate or surrogate courts. The power to vacate a judgment must be exercised by the court which rendered the judgment, and no other court can take cognizance of such an application.

The records show that Judge Yussif D. Kaba rescinded his ruling while he was still presiding over the Civil Law Court. It is therefore the opinion of this Court that the trial judge acted within the pale of the law when he entertained and granted the motion to rescind his previous ruling. One may disagree with the reason advanced by a judge for rescinding his/her ruling but the power to rescind a ruling certainly lies with the judge who entered that ruling.

The next issue, which we feel is necessary for the disposition of this matter is, whether the motion for relief from judgment should have been granted by Judge Kaba? We hold Judge Kaba should not have granted the motion for relief from judgment. Under the law, a motion for relief from judgment must be made within a reasonable time after judgment is entered. The law also provides that a motion for relief from judgment neither affects the finality of the judgment nor suspends its operation. Section 41.7(3) & (4), JLCL Rev. Civil Procedure Law.

Firstly, we see from the records that the appellant filed its motion for relief from judgment nine months after the judgment against it was entered. In our opinion, a period of nine months is not a reasonable time in the contemplation of the law for one against whom a judgment has been entered to seek relief therefrom.

Secondly, the judgment in question had been fully executed. The motion for relief from judgment was filed after the Government of Liberia had already entered into a new concession agreement with a third party, Freedom Gold. Therefore, the motion for relief from judgment should not have been entertained by the trial judge.

The last issue is, whether the Bentley Agreement had expired at the time of the filing of the petition for declaratory judgment?

Before addressing this issue, we should say, at this juncture, that we are not unaware that this case was commenced on the premise of the appellant's assertion that it did not have its day in court. The appellant maintained that it was concluded by a judgment of court and his rights under a concession agreement entered into with the Government of Liberia were taken away without due process. Due process requires that

notice be served and an opportunity be given to be heard at a legal forum before a judgment is passed. We found no evidence to the contrary, that the appellant's failure to appear in the petition for declaratory filed by the Government of Liberia was due to the fact that no notice was given, through the service of summons on the appellant. Ordinarily, where it is established, as in this case, that an opportunity was not given a party through notice, for that party to appear and be heard in a matter in which the party's interest is involved, our position has overwhelmingly been that the party should be allowed to participate in the hearing at the lower court. Thus, this Court has remanded countless cases so that parties who were not given notice would be heard.

But the case before has a different dimension. In the case before us, the parties rely principally on the Bentley Agreement, which came into effect on May 10, 1978 for a period of twenty years. We have perused the Bentley Agreement, and have determined that in accordance with its terms, the Agreement had expired. Under such circumstance it will make no difference if we were to remand this case to the lower court for the appellant to have its day in court, the result will be the same.

The appellant does not disagree with the interpretation of the term of the Bentley Agreement, but contends that the Bentley Agreement was extended for fifteen years by the Minister of Lands, Mines & Energy on August 1, 2008, close to ten years after the expiration of the Agreement.

On July 28, 2008, the appellant wrote to the Minister of Lands, Mines and Energy invoking Section 22 of the Bentley Agreement, the force majeure provision. The force majeure provision, Section 22 of the Bentley Agreement provides:

The Operator shall notify the Government within twenty-four hours of an event of force majeure affecting its ability to fulfill the terms and conditions hereof or any event which may endanger the natural resources of Liberia and similarly notify the Government of the restoration of normal conditions within twenty-four hours thereof.

The appellant claimed that the operation of its mining concession was interrupted for seven years, from 1989 through 1996, due to the civil war, and that for a period of eight years, from 1998 through 2006, the concession area was illegally given to Freedom Gold. It is worth noting that the period 1998 through 2006 spans over three administrations: the Charles Taylor Administration, Charles Gyude Bryant Transitional Administration, and the beginning of the Ellen Johnson Sirleaf Administration.

The appellant alleges that when the Liberian Civil War commenced in December 1989, it did not have sufficient time to avail itself of the force majeure provision prior to

abandoning its operation. Notwithstanding, the appellant informed this Court that during the war years, in September 1992, it notified the rebel-led regime of Charles Taylor, the National Patriotic Assembly and Reconstruction Government(NPRAG) of its inability to continue its operation due to war. The appellant did not notify the Interim Government of National Unity (IGNU), which was internationally recognized as the Government of Liberia. But after Mr. Taylor was elected President of Liberia in 1997, the appellant, who said that it notified Taylor's NPRAG of the force majeure situation, still did not recommence its operation.

Also, the fact that the Taylor Administration ended in 2003, and the appellant did not seek redress from the Bryant-led Transitional Government makes it difficult to understand why the appellant waited for five years after the demise of the Taylor administration before approaching the appellee for redress.

And even after the Sirleaf Government was inaugurated in January 2006, the appellant evidently made no effort to immediately resume its operation. It was not until July 29, 2008 that the appellant notified the Minister of Lands, Mines & Energy of its interest in the mining concession area, and requested a fifteen year extension of its mining concession.

We hold that the then Minister of Lands, Mines & Energy, Dr. Eugene Shannon, grossly erred in granting the appellant an extension of the Concession Agreement based on force majeure. In order to have invoked force majeure, the appellant should have notified the appellee within twenty-four hours of the event of force majeure affecting its ability to fulfill the terms and conditions of the Bentley Agreement. Similarly, the appellant should have notified the appellee within twenty-four hours of the restoration of normal conditions to the effect that it was ready and prepared to resume operation of the mining concession. Not only did the appellant fail to notify the appellee that it was abandoning the concession, but the appellant also failed to notify the appellee even in 1997, following the inauguration of the post-civil war government, that the appellant desired to resume operation, in view of the restoration of normal conditions.

The Minister of Lands, Mines & Energy lacked the legal authority to have either extended the Bentley Agreement or to have otherwise granted any portion of a mining area as a concession to the appellant, because although the Bentley Agreement was signed by the Minister of Lands, Mines & Energy, it was also signed by the Minister of Finance, attested to by the Minister of Justice, approved by the President of Liberia, and ratified by the Legislature, thereby becoming law. Therefore, the Minister of Lands, Mines & Energy could not unilaterally extend, amend, or otherwise vary the terms of the Bentley Agreement-a law by virtue of its ratification. The Minister of Lands, Mines & Energy was also prohibited by Section 33.2(a) of the Executive

Law, which provides that the Ministry of Lands, Mines & Energy, may grant or deny applications for certain mining rights, but never as to a concession.

From all the facts and circumstances of this it is clear that the Concession Agreement between the appellant and the appellee had expired in accordance with its terms. This means all of the attending rights and obligations of the appellant under the Agreement have been extinguished. So, even were we to remand this case to the lower court with instruction that the appellant should have its day in court, the result will not be different, since the instrument, the Bentley Agreement which the parties relied on had expired and is no longer in force and effect.

Wherefore and in view of the foregoing facts and circumstances, and the laws relied upon in this opinion, the appeal is denied and dismissed. The Clerk of this Court is ordered to send a mandate to the lower court commanding the judge presiding therein to resume jurisdiction over this case and give effect to this judgment. And it is so ordered.

Appeal dismissed.

COUNSELLORS F. MUSA DEAN AND NECULAR Y. EDWARDS APPEARED FOR THE APPELLANT. THE SOLICITOR GENERAL OF LIBERIA, BETTY-LAMIN BLAMO APPEARED FOR THE APPELLEE. COUNSELLOR CHARLES W. BRUMSKINE OF THE BRUMSKINE AND ASSOCIATES APPEARED FOR HUMMINGBIRD (LIBERIA) INC., THE INTERVENOR.